

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Joshua Tarsky, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote transparency surrounding colonoscopy procedures.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Gregory Dunn</i>	<i>86 Douglas Road, Needham, MA 02492</i>	<i>10/20/2025</i>

HOUSE No.

By Representative Tarsky of Needham (by request), a petition (subject to Joint Rule 12) of Gregory Dunn relative to colonoscopy procedures. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote transparency surrounding colonoscopy procedures.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws is hereby amended by inserting after section 70H the
2 following section:

3 Section 70I. (a) Any hospital, clinic, ambulatory surgery center or physician licensed
4 pursuant to chapter 112 that performs a colonoscopy shall, prior to the administration of sedation
5 or anesthesia, provide the patient with written and verbal notice of the patient's right to decline
6 anesthesia or to request alternative methods of pain management, unless a physician has
7 determined, based on the patient's medical history or complexity of the procedure, that the
8 colonoscopy cannot be performed safely without sedation or anesthesia.

9 (b) Such notice shall be provided during the informed consent process and documented in
10 the patient's medical record.

11 (c) Prior to the procedure, the patient shall also be provided with a good faith estimate of
12 the costs associated with the colonoscopy, both with and without the use of anesthesia or

13 alternative methods of pain management, including any facility, provider and professional fees
14 reasonably anticipated at the time of scheduling.

15 (d) The department, in consultation with the board of registration in medicine, shall
16 promulgate regulations to implement this section.